

		<i>capacity</i> only, to be satisfied from receivership funds.’...Furthermore, a receiver may not be sued without leave of court.” (<i>McCarthy v. Poulsen</i> (1985) 173 Cal.App.3d 1212, 1219 [internal citations omitted].) A court “is not required to assume jurisdiction of all controversies to which the receiver may become a party, but may upon application permit them to be determined in some other competent tribunal.... When the court cannot afford the same relief in intervention as a claimant would be entitled to in an independent action, or where by virtue of some statutory or constitutional provision a particular kind of action must be brought in some jurisdiction other than where the original special proceeding is pending, the court will undoubtedly grant leave to bring it, and it would be an abuse of discretion not to do so.” (<i>Jun v. Myers</i> (2001) 88 Cal.App.4th 117, 125 [internal citations omitted].) Here, Defendants’ collections action arose out of Adams’ receivership in the underlying action. (Complaint, ¶¶ 8 and 12.) Plaintiffs allege Adams is the president of Receivership Group. (Complaint, ¶4.) In the receivership action, Adams filed his papers under Receivership Group’s name. (Request for Judicial Notice, Exhibits 2, 3, and 4.) Accordingly, leave to commence this action is required. (<i>See, Vitug v. Griffin</i>, 214 Cal.App.3d at 493 [“The rule that claimants must apply to the court before suing a receiver is founded upon notions of judicial economy. In most cases a claimant can obtain appropriate relief in the receivership action; therefore an independent action will not be necessary.”].) Accordingly, Defendants’ demurrer is sustained with 60 days leave to amend. (<i>See, Ostrowski v. Miller</i> (1964) 226 Cal.App.2d 79, 86.) Contrary to Defendants’ contention, the Court is not without jurisdiction in the traditional sense due to Plaintiffs not first obtaining leave of court to bring this action. (<i>Ostrowski v. Miller</i>, 226 Cal.App.2d at 82; <i>Vitug v. Griffin</i>, 214 Cal.App.3d at 493.) Accordingly, the demurrer on the ground that the Court lacks jurisdiction is overruled. In light of the Court sustaining the demurrer on the ground that Plaintiffs are required to seek leave before commencing this action, the Court finds the remainder of the demurrer moot and declines to reach the merits of the general demurrer. The Case Management Conference is continued to August 11, 2025 at 10:00 a.m. in Department C27 Defendants shall give notice.
107	2022-01262979 Patel vs. Amanda Rafi, DMD, A Professional Dental Corporation	1. Motion to Compel Answers to Form Interrogatories 2. Motion to Compel Production 3. Motion to Deem Facts Admitted (1) MOTION TO COMPEL RESPONSES TO FORM INTERROGATORIES (2) MOTION TO COMPEL PRODUCTION (3) MOTION TO COMPEL RESPONSES TO REQUESTS FOR ADMISSION Plaintiff Paris Patel moves to compel Defendant Amanda Rafi, DMD, A Professional Dental Corporation’s verified responses to her Form Interrogatories, Set 2, Requests for Production of Documents, Set 3, and Requests for Admission Set 2. The subject discovery was propounded on Defendant on 9/13/24. On 10/16/24, Defendant served <u>unverified</u> responses. Plaintiff met and conferred, without success; Defense counsel indicated at the time that he had lost contact with his client. (Camilleri Decl., ¶¶ 2-8, Exs. A-E.)

		These three motions were subsequently filed on 11/18/24 and 11/19/24. (ROA 150, 154, 158.) Pursuant to Code Civ. Proc., § 2030.250, “[t]he party to whom the interrogatories are directed shall sign the response under oath unless the response contains only objections.” (See Code Civ. Proc., § 2031.250 re document demands, and Code Civ. Proc., § 2033.240 re requests for admission.) Unverified responses are tantamount to no responses at all. (See <i>Id.</i>; <i>Appleton v. Sup.CL (Cook)</i> (1988) 206 Cal.App.3d 632,636; <i>Zorro Inv. Co. v. Great Pacific Securities Corp.</i> (1977) 69 Cal.App.3d 907, 914.) Accordingly, Plaintiff requests an order compelling Defendants’ verifications to the discovery at issue as well as monetary sanctions. In opposition, Defendant states that on 1/14/25, after the motions were filed, Defendant served the subject verifications to the discovery, and thereafter verified supplemental responses. (Andrews Dec. ¶8, Exh. A.) Because verified responses ultimately were served, the motion is moot, except with respect to the issue of sanctions. While Defendant argues that sanctions should not be awarded because Plaintiff fails to demonstrate prejudice, there is no requirement that a party moving to compel discovery responses demonstrate prejudice in order to obtain an award of sanctions. Code Civ. Proc., § 2030.290(c) states: “The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (See Code Civ. Proc., § 2031.300(c) re inspection demands and § 2033.290(d) re Requests for Admission.) “The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, <u>or the requested discovery was provided to the moving party after the motion was filed.</u>” (CRC, Rule 3.1348 [emphasis added].) Verifications, which are required under the Code of Civil Procedure, were not served until four months after the discovery was propounded. The Court finds that sanctions are warranted here and awards Plaintiff \$610.00 per motion (\$1830.00 total) to be paid within 30 days. Plaintiff shall give notice.
108	2023-01332900 Raynor vs. Hurricanes Bar and Grill	Motion for Protective Order Defendant Hurricanes Bar and Grill’s motion for protective order is denied. Plaintiff Maddison Raynor is awarded sanctions of \$1,985 against Defendant. Code Civ. Proc. §§ 2017.020(b), 2019.030(c). The Discovery Act provides generally for the court’s ability to limit or shape discovery, including by protective order: The court shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. The court may make this determination pursu